



POLICE DEPARTMENT

March 18, 2025

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In the Matter of the Charges and Specifications :

- against - :

Deputy Inspector Chase Maneri :

Tax Registry No. 945948 :

52 Precinct :

Case No.

2022-27100

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Louis C. La Pietra, Esq.
La Pietra & Krieger P.C.
30 Glenn Street, Suite 105
White Plains, NY 10603

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Captain¹ Chase Maneri, on or about April 24, 2021, at approximately 2245 hours, while assigned to NARCB BX, and on duty, in the vicinity of Brooklyn Bridge, New York County, wrongfully used force, in that he shoved Victoire Scherer to the ground without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

P.G. 221-02, Page 2, Prohibition 12

USE OF FORCE

2. Said Captain Chase Maneri, on or about May 12, 2022, at approximately 1036 hours, while assigned to NARCB BX, in the vicinity of 100 Church Street, 10th Floor, New York County, via Microsoft Teams video conference, provided a false official statement to the Civilian Complaint Review Board in that he denied shoving Victoire Scherer at any time.

P.G. 203-08
(*now encompassed by*
A.G. 304-10)

FALSE OR MISLEADING
STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 4, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Civilian Complaint Review Board called the complainant Victoire Scherer, and CCRB Investigator, Charis Jones. Respondent testified on his own behalf, as well as calling Deputy Inspector Anthony Mascia as a witness. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of Specifications 1 and 2.

¹ Respondent was promoted to the rank of Deputy Inspector in April 2024.

ANALYSIS

The following facts are not in dispute in this case. On or about April 24, 2021, Respondent, who was then a captain assigned to Narcotics Borough Bronx, was designated to be the commanding officer of a Mobile Field Force assigned to a “protest detail”² (T. 126; CCRB Ex. 6, p. 4, ln. 17-19). His Mobile Field Force consisted of approximately 40 police officers, two lieutenants and five sergeants (T. 126-127; CCRB Ex. 6, p. 13, ln. 13-17). Respondent performed his duties in uniform and mustered at a location in Red Hook, where he received his orders (T. 127-128; CCRB Ex. 6, p. 5, ln. 2-14).

The alleged misconduct at issue in this case involves a period near 2245 hours, as protesters walked over the Brooklyn Bridge toward Manhattan.

The following is a summary of the relevant testimony presented during the hearing.

Victoire Scherer testified that she is employed as a graphic designer. On April 24, 2021, she participated in a protest called, “Fire Artem” (T. 20-21). The protest was intended to draw attention to a police officer who allegedly pointed a firearm at protesters in January 2021 (T. 21). Ms. Scherer testified that the protest that day was the 16th of a weekly series of protests focused on that issue (*Id.*).

Ms. Scherer testified that she and the other protesters began their demonstration at Foley Square in Manhattan, then walked across the Brooklyn Bridge to the 84th Precinct, where they remained for approximately 30 minutes before returning to the Brooklyn Bridge. She testified that this route was typical for the four to five previous occasions that she had participated in this demonstration. Ms. Scherer described the demonstrations she participated in as non-violent,

² I take judicial notice that in the aftermath of George Floyd’s death during his arrest in Minneapolis, Minnesota on May 25, 2020, there were widespread demonstrations in the United States and abroad. The demonstration at issue in this case was in response to an allegation of a display of excessive force by a police officer during one of the demonstrations which occurred in New York City in response to Floyd’s death.

including the protest on April 21, 2021. She testified that she observed the presence of approximately 100 police officers that evening, which she believed was significantly more than had been present on previous occasions. Ms. Scherer noted the presence of Strategic Response Group officers, rather than just Patrol Services or Community Affairs police officers (T. 21-23).

Ms. Scherer testified that when she and the protesters were approximately one-third or half-way across the bridge roadway back to Manhattan, they stopped for a few minutes, as they typically did, in her experience. After about five minutes, she heard an announcement over an acoustic device which told the protesters to “get off of the roadway and onto the sidewalk.” She acknowledged that the direction was inapplicable, as the protesters were walking on the roadway of the bridge and could not access the walkway at that point. She testified further that a second message was broadcast which directed the protesters to “keep moving” into Manhattan, which she claimed she and the other protesters intended to do anyway (T. 23-24, 33-34).

Ms. Scherer testified further that as she and the other protesters resumed walking into Manhattan, the front line of the police officers began urging them to walk faster, while the police frontline began moving faster in an uneven manner. According to Ms. Scherer, “it seemed like we weren’t moving fast enough to their liking, even though we were doing our best walking backwards.” She testified that some members of the police frontline were “being more aggressive than others.” Ms. Scherer testified further that two of the protesters were involved in some sort of commotion, then were placed under arrest by the police officers, even though they “didn’t do anything.” She testified that shortly thereafter, a police officer [pepper] sprayed four or five protesters in the frontline of the demonstration; she observed one of the protesters, who appeared to have received a significant dose of the spray, close their eyes, rendering them unable to see (T. 24-25).

Ms. Scherer testified that she went to assist that person, who she described as a male with platinum hair, approximately 5'6" tall. She testified that she intended to "get them out of the commotion and the immediate danger they were in being so close to the cops." She also intended to treat them for exposure to pepper spray (T. 26). Ms. Scherer testified that she stepped forward, grabbed that individual, turned them around and began walking toward Manhattan with her back to the police (T. 27). She testified further that as she began moving toward Manhattan, she was shoved to the ground; she denied falling on her face but affirmed that she did fall to the ground (*Id.*). Ms. Scherer testified that she was on the ground for "less than a second," found the person she had been assisting, then continued helping them move toward Manhattan (T. 27-28).

Ms. Scherer testified that she initially could not identify the person who had pushed her; she did, however, discern that the person was Respondent after she viewed an 11-second cellphone video which had been recorded by someone at the demonstration (CCRB Ex. 3). According to Ms. Scherer, this video depicted "a white shirt, NYPD officer who was tall, pushing me with both hands." She testified further that the officer looked familiar to her, so she reviewed footage of previous protests, eventually discovering that the officer was Respondent, whom she had seen the week before at another protest at the 84th Precinct³ (T. 28-29). Ms. Scherer testified further that she had the cellphone video enhanced, so that the last three seconds were slowed down (T. 30-31). She provided both recordings to CCRB within one or two months after the incident (T. 31, 57).

On cross-examination, Ms. Scherer confirmed that when she and the other protesters felt the police were getting "too close," they began walking backwards (T. 34-35). She conceded

³ Respondent does not dispute that he pushed Ms. Scherer (T. 133, 149, 154).

that when the protesters stopped walking toward Manhattan for a time, that it would delay the clearing of the bridge but asserted, “That was the point of the protest, to disrupt the peace” (T. 37). Ms. Scherer initially claimed that she did not remember lunging toward someone who was about to be arrested but after having her recollection refreshed by viewing CCRB Exhibit 2, from 14:42 to 14:52, she conceded that she did lunge forward but explained that she was lunging to “pull someone,” “to grab the person” (T. 41). She confirmed that during her CCRB interview on April 29, 2021, she described the same actions, stating:

... and I made my way to them and was able to grab this person but as I turned around with them to bring them to a medic, an officer I didn’t see because I had my back turned to them, shoved me. Placing his hand on my back to the ground, face first. So, I lost hold of the person I was trying to bring to a medic.

(T. 37, 42, 43-44). Ms. Scherer was then asked to identify the place on the video in CCRB Exhibit 2, she testified that the event she described could not be seen on the recording (T. 45).

Ms. Scherer was also asked whether statements by protesters, saying, “[I’m going to] smoke your mother’s ashes,” or “I’m going to find out where you live, [I’m going to] be at your house,” were peaceful, she testified, “They are just words. Words are not violent” (T. 59).

In response to a question from the Tribunal regarding what was going on around her as she reached forward to assist the person whom she believed had been disabled by pepper spray, she testified:

“In that specific moment, I was kind of laser focused on that person and getting to them. It was chaotic around me because people had just been pepper-sprayed so the protesters were trying to move back and potentially, I guess, get medical attention for the other people who had been pepper sprayed. And then it was chaotic, it seemed, on the officers’ side as well because I think some of them had gotten hit with their own pepper spray.”

(T. 64). The Tribunal sought further clarification of what she recalled happening around her five seconds before she reached forward for the stricken person; she responded,

“So, I was a little behind the line of protesters that was with the line of cops that was a little behind because I was afraid, so I didn’t want to be close to the officers. But what was happening before the pepper spray was, we were walking backwards slowly.”

(*Id.*).

Charis Jones testified that she is a Level 3 Investigator assigned to the Racial Profiling and Bias-based Policing unit of the CCRB (T. 66). She has worked for CCRB since 2018 (*Id.*). Ms. Jones testified that she was assigned to investigate an allegation of force against Respondent. She interviewed Ms. Scherer, collected and reviewed video evidence, including body-worn camera video, then interviewed Respondent (T. 68).

She testified that she reviewed Sergeant Dominguez’ and Police Officer Healy’s body-worn camera videos, as well as the two cellphone videos Ms. Scherer provided CCRB (CCRB Exs. 1, 2, 3, 4; T. 68-69). Ms. Jones testified that during her interview with Respondent, she showed him videos on five occasions “and he did not confirm that he did use the force” (T. 69). She later testified that she showed Sergeant Dominguez’ video twice and the 11-second cellphone video three times (T. 100). She testified further that based upon the entire investigation, she considered Respondent’s statement material; she also confirmed that she gave him an opportunity to amend his statement (T. 69-70).

On cross-examination, Ms. Jones conceded that while she showed Respondent CCRB Exhibit 1, Sergeant Dominguez’ body-worn camera video, and CCRB Exhibit 3, the 11-second cellphone video, she never showed him CCRB Exhibit 2, Police Officer Healy’s body-worn camera video, or CCRB Exhibit 4, the slowed down version of the 11-second cellphone video (T. 80-81). She testified that she showed Respondent the videos through Microsoft Teams teleconferencing software, as the interview was not conducted in person (T. 80).

Ms. Jones conceded that CCRB Exhibit 4, the slowed-down version of CCRB Exhibit 3, was “a clearer version of Respondent’s actions than [CCRB Exhibit 3]” and that it was easier to

see (T. 82, 83). She conceded further that the 11-second video in CCRB Exhibit 3 was “much quicker” (T. 83). She also conceded that during the Respondent’s CCRB interview, prior to showing him the 11-second cellphone video, she stated, “... okay, it’s blurry ...” (T. 106). Ms. Jones further conceded that she never showed Respondent any of the video beyond the time of the alleged shove at 14:51 (*Id.*). She testified further that she did not show Respondent any additional footage beyond that point because he had already pushed the complainant (T. 109).

Ms. Jones was confronted with the portion of CCRB Exhibit 1 from 14:54 to 14:54; she agreed that portion of the video depicted police activity immediately after Ms. Scherer was pushed (T. 107). When she was asked whether showing Respondent that segment of the recording during his interview may have provided context to him regarding his decision to push a protester just before the police activity depicted, she conceded that it could have (T. 108).

When Ms. Jones was asked why she did not show Police Officer Healy’s body-worn camera video to Respondent during the interview, she testified, “... I didn’t think it was necessary” (T. 89). She was shown the video during the hearing and conceded that from 14:40 to 14:52, the video depicted police activity on the bridge; captured police officers giving directions to “move back”; and depicted a police officer with a bicycle making a motion toward the crowd (T. 90). Ms. Jones conceded further that while the period from 14:40 to 14:52 was about the time when Ms. Scherer was pushed, she did not believe the video was important enough to show Respondent (*Id.*). She acknowledged that although Police Officer Healy was listed in her investigative file as a witness, she never interviewed him (T. 90-91). Ms. Jones acknowledged reviewing body-worn camera video from Police Officer Cardona (Resp. Ex. A) and listing him as a witness but never interviewing him during the investigation (T. 95).

Ms. Jones acknowledged that she had an obligation to conduct impartial investigations as part of her duties (T. 91). She further acknowledged that she had conducted at least one investigation prior to her testimony which involved a protest conducted by the group Black Lives Matter and did not dispute that she had liked a Black Lives Matter post on her Instagram account (T. 94). She acknowledged that Ms. Scherer told her that the protest was peaceful and non-violent. When questioned as to whether she would agree with Ms. Scherer's characterization of the protest if threats to police officers were uncovered during the investigation, Ms. Jones replied that it would depend on the "nature of the threats and what was going on at the time" (T. 97). Counsel for Respondent then asked her whether a protester stating, "[I'm going to] smoke your mother" would change her opinion of the purportedly peaceful nature of the protest, she stated that it would not (T. 98).

Video Evidence

CCRB offered in evidence four video recordings: (1) a body worn camera recording from Sergeant (now-Lieutenant) Robert Dominguez (CCRB Ex. 1); (2) a body worn camera recording from Police Officer Healy (CCRB Ex. 2); (3) a cellphone video provided to CCRB by Victoire Scherer⁴ (CCRB Ex. 3); and (4) a slowed-down version of the Scherer cellphone video (CCRB Ex. 4). Respondent offered one video in evidence, the body-worn camera video of Police Officer Cardona (Resp. Ex. C).

The relevant portions of the recordings are summarized below⁵:

⁴ Scherer testified that within one month after the protest on April 24, 2021, someone provided the cellphone video to her (T. 28-29). She testified that she then provided it to CCRB (*Id.*, 30). Ms. Scherer also provided a slowed-down version of the 11-second cellphone video to CCRB (CCRB Ex. 4; T. 30-31).

⁵ Because each of the recordings pertain to the same location and time-period, events which are recorded on more than one recording are not noted, unless the different perspective depicted of the event is itself relevant.

CCRB Exhibit 1

- 00:00-06:34 The recording begins with police officers pedaling bicycles on the Brooklyn Bridge roadway behind other police officers, who are on foot. All officers are proceeding toward Manhattan. There is no natural light, only the lighting on the roadway of the bridge. There is a black Department vehicle proceeding slowly along the left side of the roadway, near the police officers who are on bicycles. Various unrelated radio transmissions can be heard from police radios. The police officers periodically come to a stop, then resume transiting the bridge.
- 06:35 The sound of drumming can be heard in the distance.
- 07:53-11:10 Intermittent strobe lighting is visible ahead of the police officers; the sound of drumming is louder. The group of protesters appears to be stationary. Several announcements to continue walking over the bridge to Manhattan can be heard. Protesters can be heard shouting in response to the announcements, as well as chanting. A supervisor gives an order to the police officers to move up.
- 11:11-11:43 Police officers move forward slowly, facing a bright light to the right of the roadway. The group of protesters is spread out across the roadway. Raised voices can be heard and some police officers surge forward toward the center of the roadway. A light from protesters begins with a strobe pattern.
- 11:44-12:00 A small group of individuals begins walking toward the front of the police line. A group of police officers with yellow jerseys is grouped on the right side of the roadway, apparently surrounding an arrest subject. Several individuals with cameras face the police line and appear to be filming the arrest. Two protesters appear to help a third protester in the middle of the roadway to his feet. The front line of protesters turns around and begins walking toward Manhattan.
- 12:01-12:54 Several protesters approach the police line with lights; one protester has a bullhorn and begins chanting. Other protesters approach the police line and begin spreading out across the roadway. Protesters begin chanting and banging a drum.
- 12:55-13:25 A white-shirted supervisor calls out, "They're collars, they're on the bridge" and points in the direction of the protesters. Police officers begin moving forward while protesters begin to withdraw from the police line while walking backward.
- 13:26-14:05 A police officer shouts, "That's an OGA," and several police officers approach an individual wearing a red shirt to affect an arrest. Protesters continue to walk backward toward Manhattan, including a protester in an orange shirt holding up a bicycle.

- 14:06-14:16 The body-worn camera pans to the right of the bridge and shows the police line is uneven, having advanced on the left with the right-side lagging behind.
- 14:17-14:42 A police officer on the left side of the roadway shouts, "Get the girl with the bike." The body-worn camera pans to the center of the roadway, where several yellow-shirted police officers converge on a protester. A police officer shouts, "Hold the line. hold the line." The body-worn camera pans to the right of the roadway, where police officers are within arm's reach of the protesters. One protester with long, blonde hair, is holding his arms out to the side while walking backward. Police officers can be seen pushing the protesters toward Manhattan.
- 14:43-14:46 A police officer's arm reaches over the shoulder of a police officer in the front line; the individual with the long, blonde hair, leans forward from the waist. The body-worn camera view pans to the right where there are three individuals to the left of the man with his arms extended. One individual is wearing a dark hat; to that person's right, there is a woman with brown hair and a face mask⁶; to that person's right, there is a person with blonde hair and a mask who pitches forward suddenly. The sound of drumming accelerates. Ms. Scherer appears to move toward the person who is leaning forward and a police officer in a white shirt enters the frame from the left, blocking the view of Ms. Scherer. Ms. Scherer identified this police officer as Respondent.
- 14:47-15:04 The body-worn camera tilts upward, then back down to street-level. Several police officers, including two white-shirted supervisors, are in a group with an apparent subject in the center of them. A protester shouts, "I'm walking." Another protester moves toward the police line and flails their arms. A group of yellow-shirted police officers with bicycles interposes themselves between the protesters and the group of police officers, who reappear on the video, apparently leaning over someone who is on the ground being arrested.

CCRB Exhibit 2

- 14:25 There is movement to the left of the frame which apparently draws the attention of the front line of protesters.
- 14:27 A police officer appears in frame moving from right to left and grabs a suspect; they both fall to the ground. The protesters move to their right toward the interaction.
- 14:28-14:43 Police officers use bicycles to keep protesters moving toward Manhattan. Police officers can be heard shouting, "Move back, move back." Protesters are walking backward.

⁶ Ms. Scherer identified herself in this video.

- 14:43 Respondent can be seen from behind between two yellow-shirted police officers.
- 14:46 Respondent is seen assisting in an arrest.
- 14:51 Respondent appears in the front line of police officers.
- 14:53 Respondent makes a move to his right and encounters Ms. Scherer, who is standing behind another protester. His arms extend toward her, and she falls backward. The video does not show whether she merely stumbles or falls to the ground. The front line of demonstrators stops approximately arm's length from the front line of police officers, then a police officer issues a command to "Move up."

CCRB Exhibit 3

The perspective of the recording is facing the police line near the front line of the protesters. Ms. Scherer appears to be climbing over the back of a person standing in front of her, moving toward a yellow-shirted officer who is deploying pepper spray. Respondent moves from the right of the frame into the center with his hands extended. He moves in proximity to a group of protesters, then one person moves backwards, as he remains stationary.

CCRB Exhibit 4

The video is identical to CCRB Exhibit 3 except that the last four seconds of the video are slowed down to show Respondent moving toward a group of protesters, extending his arms. The slower frame speed shows Respondent moving close to the figure of the person who moves backwards, then stopping with his hands extended, before seeing the person move backwards, while twisting counterclockwise toward the rear.

Respondent's Exhibit C

- 14:19-14:33 Several police officers move to the center of the roadway, apparently to effect an arrest, and protesters surround them.
- 15:23 A protester in the front of the group yells, "F__k, you; f__k all of y'all."
- 16:37 A protester yells, "F__k, you; f__k all of y'all. F__k every single one of y'all."
- 17:17-17:26 A single protester dressed in black stops walking backward and walks toward the police line, slapping his hands together and raising his fists, as if squaring off for a physical confrontation.
- 20:58-21:03 A protester speaks to one of the police officers in the front line and states, "... find out where you live and we can settle this like men ...," while holding his fists up.
- 21:04-21:25 A protester tells the police officers in the front line, "Suck my d__k. Your mother can suck my d__k. If your mother's dead ... she can suck my

d__k again. Your whole dead family can suck my d__k,” then makes a lewd gesture.

24:14-24:26 A protester tells the police officers in the front line, “I’ll take your dead family members out of their urns and smoke ‘em.”

26:25-26:45 A protester begins chanting, “Fuck you, n___s⁷,” accompanied by drumming.

28:30 A protester states, “Be glad your mother’s dead; I f__ked her already.”

The CCRB Interview

Respondent’s CCRB interview was conducted remotely⁸ on May 12, 2022, by two CCRB investigators, Charis Jones and Supervising Investigator Lamont. Jones asked Respondent:

Inv. Jones: Did you ever make physical contact with any protesters?
Respondent: No, I don’t think so.”

(CCRB Ex. 6, p. 20, ln. 18-20). Respondent’s counsel asked him, “Do you recall?” Respondent replied, “I don’t remember” (*Id.* 21-22). Jones then asked:

Inv. Jones: Miss Scherer, our complainant, alleged that like kind of simultaneously as this pepper spray was being deployed that you came out and pushed her causing her to land face first on the ground. Miss Scherer is an early 20-year-old white male, I’m sorry, white female with short brown hair. She was wearing like a gray shirt and like jeans, does this refresh your memory of anything you may have observed or taken part in?
Respondent: No.

(*Id.*, p. 23, ln. 2-11). Supervising Investigator Lamont asked:

Supv. Inv. Lamont: Did you observe anything yourself that was similar to what Investigator Jones just described, like anything, like any physical altercation – altercation like that?
Respondent: No, I remember vaguely that there was [sic] about three or four arrest[s] made, but I don’t remember the specifics of them.

(*Id.*, ln. 13-19). Jones asked:

Inv. Jones: Okay, did you assist in any of the arrests?
Respondent: I don’t think so, I don’t remember.

⁷ The protester used a racial epithet for people of African descent.

⁸ Jones and Respondent each testified that the interview was conducted over TEAMS (T. 80, 130).

(*Id.*, ln. 20-23).

Jones then played CCRB Exhibit 1⁹ (Sergeant Dominguez' body-worn camera) from 4:21 to 14:51, then asked Respondent the following questions, to which he gave the following answers:

Inv. Jones:	Did you see yourself push Miss Scherer?
Respondent:	No.

Inv. Jones:	Okay. Does that refresh your memory, Captain?
Respondent:	No, it doesn't.

(*Id.*, p. 31, ln. 6-8; p. 33, ln. 8-10).

Deputy Inspector Anthony Mascia testified that he became a police officer in 2008 and is currently the commanding officer of the 44th Precinct in the Bronx. He and Respondent were promoted to sergeant together in 2013 and have been friends ever since. As Bronx precinct commanders, they regularly attend the same meetings at the borough command (T. 114-116).

On April 24, 2021, D.I. Mascia was assigned to the Chief of Patrol's office and was stationed in the Joint Operations Center as the Patrol Services Bureau's representative. D.I. Mascia testified that he was there primarily to monitor the funeral of DMX¹⁰, which was anticipated to extend over several boroughs (T. 116).

D.I. Mascia testified that during his assignment that day, he also monitored a protest sponsored by Black Lives Matter called "Fire Artem," which was intended to bring attention to alleged misconduct by a police officer assigned to the 84th Precinct. He testified further that at approximately 2245 hours, he heard an "85" because of "airmail." D.I. Mascia testified that

⁹ Before Jones played the video, she stated, "... the audio for this portion of the incident is irrelevant. So, I'm going to keep it on mute, because it's very loud, but if you would prefer me to play it, I can also do that" (*Id.*, p. 26, ln.22-25). Counsel for Respondent indicated his preference for the audio portion to be played (*Id.*, p. 27, ln. 2-3).

¹⁰ I take judicial notice that Earl Simmons, a rapper and actor who was known professionally as "DMX," passed away on April 9, 2021, in White Plains, New York.

“airmail” is police jargon for when objects are being thrown at police officers; he testified further that an “85” is a police radio code requesting additional officers (T. 117-118).

D.I. Mascia testified that he was in possession of intelligence information that rocks and/or bricks were going to be thrown at the police officers on the bridge from the bridge’s elevated walkway gleaned from social media accounts, and public social media feeds of individuals engaged in that protest. He testified that his position in the Joint Operations Center allowed him to see the names of the commanders of the respective mobile field forces assigned to the Brooklyn Bridge during the protest; when he saw Respondent’s name listed, he called him on a mobile telephone to advise him of the intelligence information. D.I. Mascia testified that Respondent answered his telephone call but asserted that he “couldn’t really hear anything because of everything going on.” He testified further that he probably attempted to pass on the intelligence information by sending Respondent a text message but could not be confident that he did so (T. 118-119).

On cross-examination, D.I. Mascia clarified that he received the intelligence information between approximately 2210 to 2215 hours, at about the same time the protesters began crossing the Brooklyn Bridge (T. 121). He conceded that he did not have any visual confirmation of the intelligence information at that time (*Id.*).

Respondent testified that he has been a police officer since 2008 and is currently the commanding officer of the 52nd Precinct. On April 24, 2021, he was the commanding officer of a mobile field force assigned to a protest detail at the 84th Precinct. Respondent testified further that his duties included ensuring that a protest did not become riotous and protecting the peaceful exercise of the protesters’ First Amendment rights (T. 126-127).

Respondent testified that he first mustered with his unit at a location in Red Hook and was then directed to the 84th Precinct stationhouse. He testified that before this protest detail, he had been a mobile field force commander on approximately ten occasions¹¹ (T. 127-128).

Respondent testified that he recalled the protest beginning in Brooklyn, then proceeding to Manhattan via the Brooklyn Bridge. He recalled the bridge transit to have taken “a very long time” because the protesters were walking “very slowly” due to the protesters sometimes stopping in the middle of the roadway, as well as turning around and walking backwards. Respondent testified that when a long-range acoustic device was used to broadcast warnings, the protesters would begin walking backwards slowly, then eventually come to a stop. He testified that he considered his mission to “get people off of the roadway and have them continue to their march into Manhattan or where the protest was expected to end” (T. 128).

Respondent testified that at approximately 2245 hours, the protest became “pretty tumultuous,” in part because several arrests had been made. He recalled that there was a group of people in the front of the line of protesters; as Strategic Response Group officers placed a protester under arrest, they created a police line to prevent other protesters from interfering with the arrest. Respondent testified that three or four arrests were made within a span of about two minutes. He testified further that there came a time when Ms. Scherer came to the front of the line of protesters, and he pushed her (T. 129). Respondent testified that he did not remember pushing her when he was questioned during his CCRB interview; after reviewing the video evidence, he surmised that the reason he pushed her was to prevent her from engaging in “counter-arrest activity that was definitely taking place at that exact spot” (*Id.*).

¹¹ In response to a question from the Tribunal, Respondent testified that he commanded mobile field forces assigned to protest details approximately 10-15 times as a captain but never as a deputy inspector (T. 162).

Respondent testified that he was interviewed by CCRB investigators approximately one year later on May 12, 2022. The interview was conducted using Microsoft TEAMS.

Respondent was represented by counsel, who asked that he have an opportunity to review any videos relating to the events under investigation before providing a statement; the CCRB investigator denied the request and stated that they wanted to obtain his recollections of the event before showing him any video recordings. He provided a narrative of the events of April 24, 2021, in response to the investigators' questions. Respondent testified that he did not attempt to review any materials prior to his interview with CCRB (T. 129-131).

Respondent testified that the CCRB investigator eventually showed him approximately 20 seconds of Sergeant Dominguez' body-worn camera video, CCRB Exhibit 1, stopping the recording at 14:51 or 14:52 (T. 132). He testified that his in-court perception was that the portion of video he was shown reflected the point immediately after he pushed Ms. Scherer (T. 133). Respondent testified further that when he was shown the video during the CCRB interview, he stated, "That looks like me," having recognized a rear view of himself, especially his hairline (*Id.*). He testified that he told the CCRB investigators that he saw himself making a motion toward the crowd with his hands but could not see who was on the other side of his motion (*Id.*). Respondent testified that he never denied being present on the bridge and, moreover, admitted that he was there (*Id.*).

Respondent testified that the CCRB investigators then played the video for him twice, asking him the same question; each time, he responded that he did not see himself pushing anyone in the video they played for him (T. 133-134). He testified further that the investigators never played any of Sergeant Dominguez' video beyond the 14:51 mark (T. 134). Counsel for Respondent then asked the following question and Respondent gave the following answer:

Q. Now, what if anything, difference could that have made in your testimony at CCRB had you gone 14:51 or seen, sorry, beyond 14:51?

A. Well, when I got these videos as part of the discovery in early December, it was the first time I had seen these videos played past that 14 minutes and 51 seconds. So, watching those videos in early December when I got the discovery, I was able to see that approximately three or five seconds after that push, that there was [sic] arrests being made at the exact same spot that I pushed the complainant.

(T. 134).

Respondent testified further that Police Officer Healy's body-worn camera video, CCRB Exhibit 2, was never shown to him during his interview. Counsel for Respondent then asked the following question and Respondent gave the following answer:

Q. And what, if any, difference would have been made, or what difference could it have had in your testimony had you seen the body-worn camera of Police Officer Healy back in May of 2022?

A. It would have made a huge difference for me. When I saw that video in early December as in two months ago, that was the first time seeing that video. And I saw on that body-worn camera, the complainant lunging forward to the person that was in front of her and my immediate reaction was removing her from the situation by pushing her. Had I been played that video in my CCRB hearing, it probably would have given me a much more informed opinion about what was happening at that scene.

(T. 134).

Respondent testified that if Ms. Scherer had indeed interfered with police action, he could have arrested her for obstructing governmental administration but conceded that he did not have an independent recollection of the incident (T. 136). He acknowledged that he did not place her under arrest and the likely reason for that choice was the exercise of his discretion (T. 136-137). He explained:

“Well, again, this is difficult to answer because I don't independently still recollect that incident. However, looking at these videos and what happened afterward, there's been plenty of times in my career at these types of protests where we undoubtedly make arrests

for misdemeanors, and we choose not to because we don't want these protests to become riotous or make unnecessary arrests. Where we want to just get the protest continuing and to its completion. We just want the protest over with."

(T. 137).

Respondent testified that during his CCRB interview, he was also shown the 11-second cellphone video, CCRB Exhibit 3 (T. 137). He testified further that when CCRB investigators questioned him about it, he stated that he could see himself making a motion toward the crowd but could not see who was behind the motion (T. 138-139). Respondent testified that he viewed the slowed-down version of the cellphone video, CCRB Exhibit 4, for the first time in December 2024 (T. 139). He testified he was never shown that video during his CCRB interview but that if he had been shown the video, it likely would have made a significant difference in the content of his statement:

"Seeing these videos two months ago when I got the discovery for this case, having never seen that video and then seeing it for the first time. It was an eye-opening video because I saw, it was an extra four seconds and it was my actions in the video slowed down video going from a split second to multiple seconds where I could actually see on that video now, the footage. I could see my hand extended; I can see her head moving out of frame. Which I could not see during my CCRB interview. But I could see it on the videos when I was provided in discovery."

(*Id.*).

Respondent testified further that while he recalled Ms. Scherer's in-court testimony where she stated that she was reaching forward to grab someone so that she could get them to a medic, he did not have an independent recollection of her doing so; he testified further, however, that he could see Ms. Scherer on Police Officer Healy's body-worn camera video making a lunging motion toward someone at the time of the incident, surmising that it could have been directed toward someone who was about to be arrested moments later (T. 140).

On cross-examination, Respondent testified that during his CCRB interview, he recalled police officers on the bridge behaving as if they had been exposed to pepper spray; he speculated at the time that a protester had used pepper spray against the police but discerned after he reviewed the discovery materials that it was, in fact, a police officer who had deployed the pepper spray, which apparently affected police officers, as well as some protesters (T. 143-144). He testified further that while he had no independent recollection of ordering police officers to make arrests, he did hear an officer's voice on body-worn camera video shouting, "OGA," and seeing that officer point toward someone, seconds before he pushed Ms. Scherer (T. 145).

Respondent conceded that during his CCRB interview he stated that he did not recall being involved with any arrests but later saw himself on body-worn camera he received in discovery assisting in an arrest three to five seconds before he pushed Ms. Scherer (T. 146). When Respondent was asked whether he told CCRB in his interview that he did not recall any physical altercations occurring at approximately 2245 hours that evening, he denied making that statement and gave the following response:

"I didn't say that. I said I remembered, and this is still in my memory from that night. The few things I do remember was, in my CCRB interview I remember saying there was bottles thrown at us and I remember saying that there was one person in particular physically menacing police officers at the front of the line by walking up in very close proximity to them and raising his fist towards their face, menacing them, pretending he was going to punch them."

(T. 147).

When Respondent was asked whether he recalled seeing Ms. Scherer doing anything before he pushed her that she could have been arrested for, he answered that he did recall hearing the command, "hold the line," which, based on his past experience with protest details, signaled to him that he had to be prepared for protesters to engage in a "tug-of-war," trying to pull another protester away from a police officer attempting to effect an arrest. Based upon that previous

experience, and viewing the body-worn camera video which showed an arrest being made seconds after he pushed Ms. Scherer, Respondent testified that the likely reason he pushed her is that he believed, at that time, that she was attempting to prevent another protester from being arrested (T. 152-53).

Respondent affirmed that during his CCRB interview, when he was asked whether he observed himself pushing Ms. Scherer in Sergeant Dominguez' body-worn camera video, he said no, even though he identified himself in the video lunging forward toward the protesters after viewing it three times (T. 158).

Credibility

Based upon the totality of the circumstances, I find Respondent to be a credible witness. In reaching this judgement, I have considered: (1) the content of his testimony and the degree to which it was corroborated by independent evidence; (2) his demeanor during his testimony, particularly the way he responded to questions from his own counsel and the CCRB attorney; and (3) the reasonableness of the factual assertions he made.

Respondent was forthcoming regarding his lack of independent recollection of most of the material events in this case. I find this assertion reasonable, given the generally organic nature of protest activity, the number of protest details Respondent had been assigned to prior to the events of this case, Respondent's responsibility to supervise the orderly use of police resources during such an event and his interview being conducted one year after the events in question. With respect to the circumstances of this case, I am mindful that the protest took place at night and was a mobile, rather than stationary, event. Based upon my review of the video evidence, I also find compelling the relative quiet before the protesters reached the critical point of the demonstration on the bridge and the increasing levels of noise, which appeared to be

deliberately generated, as police officers drew closer to them. In sum, I find the event to have an element of chaos, which makes Respondent's professed lack of independent recollection of events more plausible.

I find Victoire Scherer to be generally truthful, but she displayed a degree of bias which colored her testimony. Rather than respond directly and succinctly to questioning, she gratuitously inserted her personal views into her testimony concerning the motivations of police officers as a group without any factual basis. Having observed her demeanor as she testified during the trial, the Tribunal found some of her responses to questions to be tinged with condescension. For example, in responding to CCRB's questions regarding her educational background, Ms. Scherer gratuitously described McGill University, where she attended college on a scholarship, as "the Harvard of Canada" (T. 20). After the Tribunal attempted to obtain a definition of "LRAD" from Counsel for Respondent, he instead posed the question to her; she testified that it was a long-range acoustic device but volunteered, "it's essentially a weapon of war ..." (T. 33). She testified that she and other protesters walked backwards across the Brooklyn Bridge because the police officers were "really close ... getting a little bit aggressive" (T. 24). When questioned by the Tribunal as to the nature of "medics" she referred to in her testimony, she responded by offering that they were trained to assist protesters who became "victims" of various forms of police violence (T. 62).

Both of CCRB's witnesses were cross-examined on the issue of whether they characterized the protest on April 24, 2021, as "peaceful," or "non-violent" (T. 58-59, 96-98). Counsel for Respondent challenged their portrayals of the gathering with several instances of anti-police invective that were captured on the body-worn camera recording of Police Officer Cardona by asking each witness whether they would reconsider their characterization of the

protest considering the violent language used by one or more protesters (Resp. Ex. C). While the issue of the purportedly peaceful nature of the protest is not before this Tribunal as a fact of consequence, both witnesses' refusal to concede the potentially incendiary effect of the invective is relevant to the potential bias of each witness, which is a factor in assessing their respective credibility.

Specification 1: Use of Force Without Police Necessity

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent used force against Victoire Scherer on April 24, 2021, without police necessity.

Based upon the credible, relevant evidence at trial, I find that Respondent used force against Ms. Scherer on the Brooklyn Bridge: she testified credibly to that factual assertion, Respondent admitted under oath that he did so, and the video evidence permits the Tribunal, as the finder of fact, to make a finding that he pushed her, based on the reasonable inferences drawn from them, when considered in the aggregate. I note that based upon my independent review of the video evidence, no single video conclusively established that Respondent pushed Ms. Scherer.

Despite this finding, CCRB still bears the burden of proof that any force Respondent used was without police necessity. The credible evidence offered through CCRB's own evidence establishes that Respondent pushed Ms. Scherer during a chaotic protest during a brief period where police officers were taking police action in his immediate vicinity. The video evidence, Ms. Scherer's concession during her testimony, and Respondent's testimony support a finding that she made a lunging motion toward someone in front of her. Based upon Respondent's credible testimony that he likely pushed her because he thought that she was attempting to

interfere with an arrest, and her testimony that she was, in fact, reaching out to another protester to assist them, I find that he did have police necessity for the force used. I further find the degree of force was reasonable based upon the surrounding circumstances.

I make this finding mindful that Ms. Scherer testified that her reason for moving forward was to assist a fellow protester she believed to have been stricken by pepper spray. Whether her professed motivation reflected her state of mind at the time of the protest is immaterial; her actions, when viewed objectively by a reasonable police officer, were equally consistent with someone who intended to interfere with an arrest. Based upon that reality, I find that Respondent's actions were based upon his reasonable belief that she was attempting to interfere with an arrest.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

Specification 2: False Official Statement

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent made a false official statement on May 12, 2022.

Specification 2 alleges that Respondent "denied shoving Victoire Scherer at any time." I have thoroughly reviewed CCRB Exhibit 6 in evidence, as well as CCRB Exhibit 5, the audio recording of the interview. Based upon the Tribunal's inspection, at no point during the interview does Respondent make the factual assertion referenced in Specification 2. Based upon CCRB's own evidence, when Respondent was asked whether he made physical contact with any protesters, he offered a qualified response: "No, I don't think so." When asked a follow-up question of whether he remembered, he replied, "I don't remember."

During CCRB's opening statement, the CCRB attorney asserted the evidence would show:

“Captain Maneri asserted that he did not recall the events of the day and did not push Ms. Scherer. Even after reviewing video which captured the push multiple times, Captain Maneri continued to deny pushing Ms. Scherer.”

(T. 10).

Later in CCRB’s opening statement, the CCRB attorney asserted the evidence would show:

“ ... the captain claims he did not remember the events in question. He had a lot of these protests and was not able to recount the details specific to this. He did not even remember what the protest was about. The cell phone video in [sic] Sergeant Dominguez’s body worn camera was shown to Captain Maneri during the CCRB’s interview to refresh his recollection. Despite reviewing the primary evidence, the cell phone video, not once, not twice but three times, Captain Maneri remained steadfast in his denial.

You will hear testimony from the CCRB Investigator Charis Jones who conducted the interview and determined given the evidence presented, the captain’s rank, deep training and experience, his denial of the material fact was intentionally untrue.”

(T. 14).

Jones admitted during her testimony that she never showed Respondent CCRB Exhibit 2, Police Officer Healy’s body-worn camera video because she “didn’t think it was necessary” (T. 89). She also conceded that she never showed Respondent the slowed-down version of the 11-second Scherer cellphone video (CCRB Ex. 4) (T. 81). Thus, any evaluation of the evidence offered in support of the accusation that Respondent made a false statement must exclude CCRB Exhibits 2 and 4.

It is noteworthy that the recording in CCRB Exhibit 1 is recorded from the perspective of someone behind Respondent and to his left; CCRB Exhibit 2 depicts Respondent’s actions from the perspective of a person behind Respondent and to his right. A review of CCRB Exhibits 1 and 2 establishes, from two rear perspectives, that Respondent quickly moved to his right, at an angle, and leaned forward; they do not show what or whom Respondent was moving toward.

When all the video evidence is evaluated together, Respondent did move to his right and extend his arms toward someone, then move back. This Tribunal's *de novo* evaluation of CCRB Exhibits 1 and 3 confirms this but only permits an inference that Respondent made contact with someone and pushed them. Respondent's actions, as depicted on those two recordings, are so fleeting that a single viewing only establishes the motions he made with his body; they do not clearly depict the object of those actions. It is only when CCRB Exhibits 1, 2, 3 and 4 are viewed in conjunction with each other, that they circumstantially establish that Respondent pushed Ms. Scherer.

Based upon the evidence shown to Respondent during the CCRB interview, I find that his answers regarding whether he saw himself pushing Ms. Scherer were not disingenuous. I further find that based upon the pleading in Specification 2, CCRB's theory of the case is at variance with the evidence presented in support of the charge. As stated above, CCRB Exhibits 5 and 6 do not establish that Respondent made a factual assertion during his interview that he did not push Ms. Scherer. If CCRB's argument is that Respondent's assertion that he did not see himself push Ms. Scherer in the two videos he was shown during the interview is the same as an affirmative assertion that he denied pushing her, then they have failed to establish that drawing such an inference reasonably flows from the evidence.

CCRB argued on summation that Respondent's testimony at trial, that after viewing CCRB's Exhibits 1, 2, 3 and 4 numerous times during the hearing, he could see himself making a pushing motion toward a person he came to know was Ms. Scherer, was self-serving and not worthy of belief. In support of this argument, they offered the following excerpt from Respondent's interview:

Q. Captain, have you told me everything you remember about this incident?

A. Yes.

Q. Is there anything you [sic] else like to add to the record?

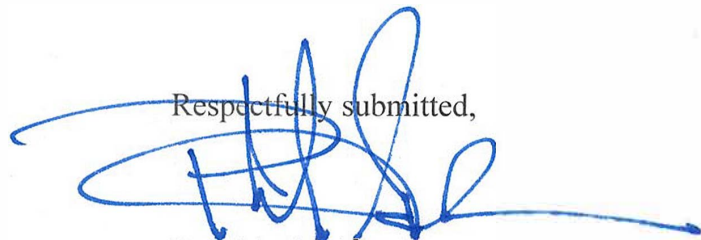
A. No.

(*Id.*, p. 35, 16-22).

CCRB argued that since Respondent had the opportunity to supplement his interview with any statement he wished to make, that he could have corrected the record at that time, rather than at trial. This argument lacks merit and is, moreover, disingenuous. To credit this argument would be to reward CCRB for curating the evidence it wished to confront Respondent with during the interview, accusing him of making a false statement because he did not adopt their interpretation of the probative value of the self-selected video evidence, then discounting Respondent's trial testimony, given after he had viewed all the material evidence and reached the conclusion they wanted him to reach during the interview after only viewing a strategically selected portion of the evidence.

Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

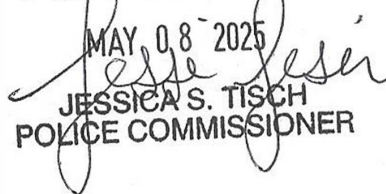
Respectfully submitted,



Paul M. Gamble, Sr.

Assistant Deputy Commissioner Trials

APPROVED

MAY 08 2025

JESSICA S. TISCH
POLICE COMMISSIONER